

Multiple Choice (10 marks)

1. Hart argues that secondary rules are 'power-conferring' but this seems unconvincing in the case of the rule of recognition because:
 - (a) It is not a social rule.
 - (b) It both confers power and imposes duties on judges to decide cases.
 - (c) It is a primary rule, not a secondary rule.
 - (d) It is applicable only in the case of federal constitutions.
 - (e) It fails to specify the source of authority.
2. Leopold Pospisil identifies four elements manifested by law: authority, universality, 'obligatio' - and fourthly?
 - (a) Integrity.
 - (b) Hierarchy.
 - (c) Dispute.
 - (d) Justice.
 - (e) Harmony.
3. What is passive personality jurisdiction?
 - (a) It is jurisdiction based on the country where the legal person was Registered
 - (b) It is jurisdiction based on the nationality of the offender
 - (c) It is jurisdiction based on the relationship between the victim and the offender
 - (d) It is jurisdiction based on the nationality of the victims
 - (e) It is jurisdiction based on the severity of the offence
4. Which of these statements best describes the UK Constitution?
 - (a) The UK Constitution is a direct copy of the US Constitution
 - (b) The UK Constitution is codified and contained in a single document
 - (c) The UK Constitution can be changed by a simple majority vote in Parliament
 - (d) The UK Constitution gives the judiciary the power to overturn acts of parliament
 - (e) The UK Constitution is based on a Bill of Rights
5. Which statement below best represents Durkheim's view of the function of punishment?
 - (a) Vengeance.
 - (b) Deterrence.

- (c) Restoration.
- (d) Moral education.
- (e) Indemnification.

True / False (10 marks)

Answer True or False

6. True or False: According to Savigny's notion of Volksgeist, law reflects the collective spirit and culture of a society rather than a sovereign's will.
7. True or False: Kelsen is known for claiming that 'Jurisprudence is the eye of law', emphasizing the importance of legal norms over jurisprudence.
8. True or False: An 'armed attack' allows a state to respond with an invasion regardless of the intensity of the armed force used.
9. True or False: Jeremy Bentham is credited with the phrase 'Jurisprudence is the eye of law,' highlighting his utilitarian approach to legal theory.
10. True or False: Weber's explanation of the development of formally rational law is best summarized by the concept of socialism.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Analyze the implications of a criminal statute prohibiting the dissemination of information on obtaining abortions, and discuss whether such a law infringes upon First Amendment rights related to commercial speech.
12. Discuss the legal definition of slander and analyze the implications of intent in determining whether a statement qualifies as slanderous.

End of Paper